HILCHOT SEFIRAT HAOMER AND SHAVUOT – SHULHAN ARUKH

Receiving The Torah: Laws, Minhagim & Customs - Halachot Of Shavuot

Hilchot Sefirat HaOmer and Shavuot – Shulhan Arukh

Detailed Halachic Notes from Shiur

Siman 494 - Hilchot Shavuot

Overview

- This chapter appears after the completion of Hilchot Omer
- Contains three seifim (sections) covering the laws of Shavuot
- Located in Shulchan Aruch Siman 494

Seif 1 - Basic Laws of Shavuot

Date and Timing

- **When**: Shavuot occurs on the 50th day after counting the Omer (49 days)
- **This year**: The 49th night falls on Motzaei Shabbat, making Shavuot begin Sunday night

Prayer Service Structure

- **Format**: Same basic service structure as Pesach
- **Key Difference**: Instead of saying "זמן חרותנו" (time of our freedom), we say "זמן מתן תורתנו" (time of the giving of our Torah)
- **Hallel**: Complete Hallel is recited
- **Torah Reading**: Two Torah scrolls are taken out

Torah Reading Details

- **First Sefer Torah**: Five aliyot from "בחדש השלישי" until the end of the section (Parshat Yitro - Ten Commandments)
- **Maftir**: Read from second Torah - "יום הביכורים" from Parshat Pinchas (discussing Shavuot sacrifices)
- **Haftarah**: From Yechezkel's vision of the Divine chariot (Merkavah), ending with "ותשאני רוח"
- **Reason for Haftarah**: Parallels the revelation at Mount Sinai, as Hashem revealed Himself both at Sinai and in Yechezkel's prophetic vision

Critical Halachic Discussion: Timing of Maariv and Kiddush

The Controversy

Mishnah Berurah's Position: Wait until nightfall (tzet hakochavim) for both Maariv and Kiddush on Shavuot night

Historical Development

1. **Original Sources**: No mention in Gemara or Rishonim about waiting until nightfall for Shavuot
2. **First Mention**: Rav Horowitz from Poland (450-500 years ago) first suggested this practice
3. **Later Development**: The Taz (Turei Zahav) extended this to include Maariv as well

The Reasoning (Rav Horowitz)

- **Problem**: Making Kiddush before nightfall ends the 49th day of Omer prematurely
- **Source**: "שבע שבתות תמימות תהיינה" - Seven complete weeks they shall be
- **Logic**: Early Kiddush detracts from the "תמימות" (completeness) of the 49th day

Fundamental Halachic Issues with This Position

1. Contradicts Torah Mitzvah of Tosefet Yom Tov

- **Torah Requirement**: "להוסיף מחול על הקודש" - Add from weekday to holy time
- **Application**: We add time before Shabbat (minimum 2 minutes, typically 15-40 minutes)
- **Yom Tov**: Same mitzvah applies (either Torah or Rabbinic obligation)
- **Logical Conclusion**: Should bring in Shavuot early, not late

2. Lack of Early Sources

- **Missing from Rishonim**: No mention in any early authoritative sources
- **Selective Application**: Rishonim only mention waiting until nightfall for Pesach and Sukkot (due to Torah obligations of matzah and sukkah)
- **Inconsistency**: No mention in Shulchan Aruch for Shavuot specifically

Sephardic Response and Position

18th Century - Chacham Laniado (Syria)

- **Testimony**: "We have never seen anyone doing this"
- **Rationale**: Why delay learning on Shavuot night?

19th Century - Rav Chaim Palachi (Izmir, Turkey)

- **Position**: "This is not our custom, we don't do this"
- **Ruling**: Permissible to bring in Shavuot early

Contemporary Ruling - Chacham Ovadiah

- **Compromise Position**: If praying Maariv and making Kiddush after shkiah (sunset), certainly acceptable

- **Reasoning**: We are not stringent on this new din that requires waiting until full nightfall
- **Maximum Stringency**: If wanting to be careful, wait until sunset

Practical Applications

Ashkenazi Practice

- **Standard**: Wait until after 10:00 PM for Maariv
- **Kiddush**: Often not until 10:45-11:00 PM
- **Result**: Very late Yom Tov meal

Sephardic Practice

- **Northwest London Standard**: Mincha/Maariv, then home after shkiah (~9:00 PM) for Kiddush
- **Alternative**: Regular early times (7:15-7:30 PM) with early Kiddush
- **Principle**: "להוסיף מחול על הקודש" - Adding to the holiness

When Early Times Are Recommended

1. **Young children** who want to participate in Yom Tov meal
2. **Family considerations** (spouse, elderly relatives)
3. **When late timing compromises** "עונג ושמחה" (joy and pleasure of Yom Tov)
4. **Practical challenges** with very late meat meals

Bottom Line Ruling

- **Sephardim**: Never accepted this stringency; early Kiddush is acceptable
- **Ashkenazim**: If late timing causes difficulty or detracts from Yom Tov joy, early times are permissible
- **Universal Principle**: Yom Tov must maintain its essential elements of joy and celebration

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The Custom of Staying Awake (Tikkun Leil Shavuot)

Source in Mishnah Berurah

Zohar: Early chassidim would stay awake all night studying Torah **Arizal**: Anyone who doesn't sleep at all and studies Torah is guaranteed to complete his year without harm

Halachic Context

- **No Early Sources**: Not mentioned in Gemara, Rishonim, or Shulchan Aruch
- **Only Mandatory All-Night**: Shulchan Aruch only requires staying awake on Pesach night ("עד שתחטפנו שינה" - until sleep overtakes you)
- **Historical Development**: Practice spread from Zohar through Arizal to become nearly universal

Practical Considerations

Potential Problems:

1. Sleeping until 5:00 PM the next day
2. Missing proper Shacharit (praying while falling asleep)
3. Ruining the entire next day of Yom Tov
4. Sleeping through the second evening

Alternative Approach:

- Have normal Yom Tov meal
- Sleep normal hours
- Wake up refreshed for proper Shacharit
- Spend the day productively learning Torah

Underlying Reason: Rectification for Bnei Yisrael oversleeping before receiving the Torah

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Seif 2 - Second Day of Shavuot

Torah Reading

- **Parshah**: "כל הבכור" until end of section (end of Parshat Re'eh - discusses festivals)
- **Maftir**: Same as first day (from Parshat Pinchas)
- **Haftarah**: From Chavakuk - "והשם בהיכל קדשו... הופיע מהר פארן"

Reason for Haftarah Selection

- **Reference**: "הר פארן" refers to Har Sinai
- **Biblical Source**: Beginning of V'zot Haberachah - "הופיע מהר פארן ואתה מרבבות קודש"
- **Theme**: Hashem's appearance from various places, culminating at Har Sinai

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Seif 3 - Post-Shavuot Observances

Prohibition of Fasting

Rule: "אסור להתענות במוצאי חג השבועות" - Forbidden to fast on the day after Shavuot

Reasons for Enhanced Status of Isru Chag Shavuot

1. Temple Service Consideration

- **When Shavuot fell on Shabbat**: Individual sacrifices (שלמי חגיגה, עולת ראיה) were offered the next day
- **Difference from other holidays**:
- Pesach/Sukkot: Seven days available for makeup sacrifices
- Shavuot: Only one day, so next day becomes sanctified for this purpose

2. Alternative Dating Theory

- **Opinion**: Torah was actually given on the seventh of Sivan
- **Implication**: What we call "Isru Chag" was actually the main day of Shavuot
- **Result**: Highest level of kedushah among all Isru Chag days

Tachanun Practices

Universal Rule

> "ואין אומרים תחנון מתחילת ראש חודש עד ח' בו" - No Tachanun from Rosh Chodesh until after Isru Chag

Reasoning:

- **Rosh Chodesh**: No Tachanun
- **Second of Sivan**: Moshe receives instructions for three-day separation
- **Three days of preparation**: Sanctified time
- **Shavuot**: No Tachanun
- **Isru Chag**: Extended sanctity

Different Customs

Ashkenazi Practice: Resume Tachanun day after Isru Chag (8th of Sivan)

Sephardic and Chassidic Practice: Full seven days from beginning of Shavuot

- **This year's calculation**:

- Shavuot begins Sunday night
- Day 1: Monday, Day 2: Tuesday... Day 7: Sunday
- Resume Tachanun: Monday morning (8th day)

Outside Israel (Chutz La'aretz):

- **Kaf HaChaim**: Count from second day of Yom Tov
- **Result**: Additional day without Tachanun (resume Tuesday)

Customs and Practices

Spreading Grass and Plants

Practice: "ונוהגים לשטוח עשבים בשבועות בבית הכנסת ובבתים"

Source and Development:

- **Origin**: Maharil in Germany (14th century, 600-700 years ago)
- **Original**: Only in synagogue
- **Rema's Addition**: Extended to homes
- **Spread**: Originally Ashkenazi, now accepted by Sephardim

Reason:

- **Biblical Source**: "הר סיני גם הצאן והבקר אל ירעו" - sheep and cattle shouldn't graze
- **Inference**: There was grass around Har Sinai
- **Commemoration**: Spread grass and small plants to remember Sinai

Trees in Synagogue - Controversial Practice

Development of Custom

Basis: Mishnah in Rosh Hashanah - "בשבועות נידונים על פירות האילן" (On Shavuot we are judged regarding fruit of trees)

Reasoning:

- **Pesach**: Judgment on produce (wheat/omer)
- **Shavuot**: Judgment on tree fruits (harvested from Shavuot to Sukkot)
- **Sukkot**: Judgment on water for winter; all fruits gathered
- **Practice**: Put up trees to remember this judgment

Vilna Gaon's Opposition

Prohibition: Violates "ובחקותיהם לא תלכו" - don't follow ways of gentiles **Reference**: Christmas trees **Ruling**: Forbidden to put trees in synagogue

Mainstream Halachic Response

Two Interpretations of "ובחקותיהם לא תלכו":

1. **Strict View (Vilna Gaon)**: Any imitation of gentile practices forbidden

- **Problem**: Would prohibit medical gowns, seatbelts, safety regulations
- **Example**: Rav Moshe Feinstein's question about doctors' attire

1. **Mainstream View**: Only forbidden if:

- Practice lacks clear, apparent reason
- Origins are known to be from pagan sources
- **Permitted**: Practices with logical, non-pagan reasons

Application to Trees:

- **Argument for Permission**: Origins purely for Shavuot remembrance, no pagan connection
- **Counter-argument**: Unknown historical development; possible unconscious influence

Practical Result: Most authorities permit, but controversy remains

Dairy Foods Custom

Rema's Ruling

Customary everywhere to eat dairy foods - "ונוהגין בכל מקום לאכול מחלי חלב ביום ראשון של שבועות" on first day of Shavuot

Historical Development

- **Time Period**: 1300s-1400s in Europe
- **Original Practice**: Dairy foods (not entire meals)

Rema's Explanation

Parallel to Pesach:

- **Pesach**: Two commemorations - Korban Pesach (afikoman) and Chagigah (egg)
- **Shavuot**: Remember "שתי הלחם" (two loaves) - unique Shavuot sacrifice

Mechanism:

1. Begin with dairy dish using challah
2. Challah becomes dairy and cannot be reused with meat
3. Bring fresh bread for meat course
4. Result: Two loaves of bread (שתי הלחם)

Important Clarifications

What the Custom Is:

- **Original**: "מאכלי חלב" - dairy foods
- **Not**: Complete dairy meals
- **Purpose**: Symbolic remembrance, not meal replacement

What the Custom Is Not:

- **Incorrect**: Substituting entire Yom Tov meal with dairy
- **Halachic Problem**: Goes against Yom Tov requirement for meat/chicken
- **Exception**: Personal dietary preferences or health considerations

Proper Practice:

- **Yom Tov Standard**: Meat and chicken meals
- **Accommodation**: Dairy acceptable if person uncomfortable with meat
- **Principle**: Individual's simcha takes precedence over custom

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Summary Points for Review

Key Halachic Principles Established

1. **Tosefet Yom Tov**: Torah obligation to add time to holy days
2. **Simchat Yom Tov**: Joy and celebration must be preserved
3. **Minhag vs. Halachah**: Distinguish between customs and obligations
4. **Historical Development**: Understanding origins prevents over-stringency
5. **Individual Needs**: Personal circumstances can override general customs

Practical Takeaways

1. **Timing**: Sephardim may make early Kiddush; Ashkenazim have flexibility when needed
2. **Learning**: Stay awake only if it enhances rather than detracts from Yom Tov
3. **Customs**: Grass/plants universally accepted; trees controversial; dairy foods supplementary
4. **Post-Shavuot**: No fasting on Isru Chag; varying Tachanun customs

Questions for Further Study

1. How do we balance historical customs with practical needs?
2. What constitutes "ובחקותיהם לא תלכו" in contemporary contexts?

3. How should individual simcha be weighed against communal minhagim?

Next Topic: Beginning Hilchot Muktzeh

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